EQUAL PROTECTION IN THE PRISON CELL: RACIAL SEGREGATION AND CONSTITUTIONALITY IN *JOHNSON V. CALIFORNIA*

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ABSTRACT

Galvanized by the Equal Protection Clause of the Fourteenth Amendment, courts of law in the United States have pursued an active agenda of eliminating all forms of government racial discrimination. This includes banishing one of its most invidious forms—mandated racial segregation—as a bygone of the past. Or is it? This article elects a more recent time: the legal case of Johnson v. California, through which we find racial segregation to be alive in the reception cells of the California state prison system. Its justification, as we trace the appellate history of Johnson, appears reasonable at first: A prison wants to separate the incarcerated by race so as to avoid the threat of interracial violence. But, in applying a higher order of judicial review, lifted from the Supreme Court ruling in Johnson, we defend an argument that segregating the incarcerated by their race, while aligned in theory with a valid governmental interest, is marred with several flaws. Rather than a reasonable protocol of prison order, the policy of racial segregation we start with in Johnson is subsequently deconstructed into a wrongful and unnecessary artifact, an essential revision of the appellate ruling. Doing so, this process is accompanied by case facts, doctrine, and a consideration of empirics, culminating into interpretable lessons about the future of equal protection before the law—and in the American prison.

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I. INTRODUCTION

In 1967, anchoring the majority opinion for *Loving v. Virginia*, Chief Justice Earl Warren wrote, "The clear and central purpose of the Fourteenth Amendment was to eliminate all official state sources of invidious racial discrimination in the States."[3] If decades of contestation show any truth of the matter (see, for example a litany of cases in *San Antonio Independent School District v. Rodriguez (1973)*; *Grutter v. Bollinger (2003)*; *Obergefell v. Hodges (2015)*; *Students for Fair Admissions, Inc. v. President and Fellows of Harvard College (2023)*), it is that our country is still in struggle—with understanding the place of race in society, and moreover, with the permissibility of racial categories in state-sponsored action.

This article adds to this dialogue, by beginning at the fringes—of where we least expect equal protection before the law, deep inside a prison cell. Specifically, we discuss *Johnson v. California*, a case of alleged racial discrimination in a California state prison that we believe, at its heart, challenges our notions of equal protection as a constitutional concept (in prisons and out), and our understanding of not purely invidious racial discrimination but also neutral or perhaps benign race consciousness serving legitimate interests. The ethics of this matter here are more nebulous, but *Johnson v. California* can help us through the morass.

This article is thus organized as follows: It starts with a summary of the facts, issues, and rules of law in *Johnson*, before reconstructing its appellate case decision. The appellate review is then brought into context with a Supreme Court overturn of *Johnson*, which also serves as a rebuttal of the appellate case reasoning. Then, under strict scrutiny, we ask whether the policy evident in *Johnson* is constitutional given the facts, and more patent, whether it is wrongful under a moral paradigm. Finally, we draw out lessons for the future of American penal administration and its relationship to the judicial system.

[3] *Loving v. Virginia, 388 U.S. 1 (1967), at 10.*

II. BACKGROUND

[4]Petitioner Garrison Johnson was an African American man serving a federal sentence for murder, robbery, and assault with a deadly weapon. Since 1987, he had been in custody of the California Department of Corrections and Rehabilitation ("CDC"), churning through various correctional facilities, beginning in Folsom State Prison ("Folsom"), where he was held intermittently between 1987 to 1991. Upon Johnson's arrival to Folsom, and his transfers to other CDC institutions thereafter, he would be initially housed in a separate reception center (for up to 60 days) where the CDC implemented a screening process that would determine his eventual housing with the main prison population. The CDC would use that period to evaluate Johnson's physical, mental, and emotional health; his desired vocational and educational goals while incarcerated; his jail history and security needs; and whether he had any enemies in prison. For CDC administrators, this evaluative period of 60 days was important, because it gave them the necessary information to determine if inmates[5] were proper threats to others. If they were, they would be transferred, again, to another CDC facility for the reception and screening process to renew; if they were not, they were treated as "nonviolent", and assigned to live permanently in an integrated dormitory with other inmates. Or, if the screened inmate was designated to stay in a double-cell, the CDC permitted inmates to mutually self-select their own cell mates. For both this policy and the assignment of dormitories, inmate race was not a linchpin used in these decisions of human rearrangement.

Johnson v. California, however, concerns where race did matter. In the 60 days prior to permanent housing, Johnson and other inmates in the ambit of CDC reception centers would be placed in a temporary double-cell.[6] This policy of placement and inmate cell pairings, conversely, had the most to do with race. Of course, while the CDC was supposed to consider a constellation of other factors, such as inmate gender, age, and gang

[4] All forthcoming case facts are cited generally from *Johnson v. California, 321 F.3d 791 (2003)* unless specified otherwise.

[5] We use the term "inmate" throughout in a purely descriptive sense, and to stay coherent with terminology used in cited cases.

[6] According to the CDC, single-cells were a premium in overcrowded receptions centers, and were reserved only for inmates "with special security problems" such as informants or extreme youth. *See Brief for Respondents in Johnson v. California, at 7.*

affiliation, race was the *de facto* (but unwritten) dominant factor. According to testimony from the CDC, the chances of an inmate assigned to a cell mate of another race was "[p]retty close"[7] to zero percent. Central to the policy of initial inmate segregation was an institutional belief from within the CDC that race relations were important to inmates, and moreover that they played determinative roles in causing prison violence. The CDC cited incidents of interracial violence perpetrated by prison gangs (e.g., the Mexican Mafia, Nuestra Familia, Black Guerilla Family, Aryan Brotherhood, and Nazi Low Riders), that this prison gang culture was murderous, and professed concern in the overall degree of racialized violence and conflict that would ensue if inmates *were not* segregated before the facility at hand could quantify their danger to others. Indeed, one associate warden testified that if race were not factored into initial housing (cell) assignments, racial conflict would indubitably pass in such cells, and in prison yards, stating, "I am therefore not willing to knowingly disregard the factors that place an inmate into jeopardy and would not compromise an inmate or group of inmates' safety by taking steps that I know would result in violence and conflict."[8]

With their race under observation, inmates newly arriving or transferring to CDC facilities were categorized into four general ethnoracial categories: Black, White, Asian, and Other (e.g., Hispanic). These categories were further sub-divided: Japanese and Chinese inmates, for example, were generally not housed together, nor were Hispanics from North California and Hispanics from South California (whom CDC administrators said were at odds). While Folsom and other CDC facilities were fully integrated outside these racial divisions (e.g., outside the reception area, there were no racial groupings based on job assignments, meal times, yard and recreation time, or educational-vocational activities), the confined nature of the reception cells, according to CDC administrators, made them different from these areas of prison, where racial violence could also unfold. Staff allegedly had trouble seeing into cells from afar, inmates were capable of covering cell windows, and the fact reception center inmates spent the bulk of their time confined in cells amid the potential tides of racial tension, threw the protection of inmates into question. As such, upon Johnson's initial arrival at Folsom in 1987, followed by his subsequent four transfers across the CDC system, he would be confined in a reception cell with another Black inmate, always.

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[7] *Johnson v. California, 321 F.3d 791 (2003), at 794.*
[8] *Ibid., at 794.*

III. LEGAL ISSUES, RULES, AND APPELLATE REASONING

Filing a complaint in the U.S. District Court for the Central District of California ("the District Court"), which was then appealed to the U.S. Court of Appeals for the Ninth Circuit ("the Ninth Circuit"), Johnson would allege that the policy of racially segregating all inmates in CDC reception center cells, in effect, amounted to discrimination in violation of the Equal Protection Clause under the Fourteenth Amendment. To explain, the Equal Protection Clause provides that "[n]o State shall…deny to any person within its jurisdiction the equal protection of the laws", with one of its idealized goals as the doing "away [of] all governmentally imposed discrimination based on race,"[9] as "[d]istinctions between citizens solely because of their ancestry are by their very nature odious to a free people whose institutions are founded upon the doctrine of equality."[10] Any exception to this demand for equal protection, such as government use of racial classifications, must survive a daunting two-stepped examination, by a reviewing court, known as "strict scrutiny".[11] Under strict scrutiny, the government has the burden of proving racial classifications are, first, used to "further compelling governmental interests".[12] These interests are not properly defined by law, but they are generally treated as "important goals"[13] based on either a need for remedial action (such as righting historical government wrongs) or on operational needs (such as the orderly administration of prisons, as we will observe in *Johnson*). Second, the classification must be "narrowly tailored", meaning "necessary"[14] as specified by *Grutter*, to achieve such interests. As such, the classification cannot be overbroad, or fail to address elements of an interest, and moreover, that it cannot be replaced by "lawful alternative and less restrictive [e.g., intrusive] means."[15]

On appeal, the Ninth Circuit, however, applied a different jurisprudence to Johnson. Citing *Lee v. Washington*, wherein the Supreme Court ruled that an Alabama state statute segregating cell blocks in prisons

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[9] *Palmore v. Sidoti, 466 U.S. 429 (1984), at 432*.
[10] *Hirabayashi v. United States, 320 U.S. 81 (1943), at 100*.
[11] *Adarand Constructors, Inc. v. Peña, 515 U.S. 200 (1995), at 226*.
[12] *Grutter v. Bollinger, 539 U.S. 306 (2003)*
[13] *Ibid., at 326*.
[14] *Ibid., at 327*.
[15] *Wygant v. Jackson Board of Education, 476 U.S. 267 (1986), at 280*.

was unconstitutional, the Ninth Circuit assented with the concurrence of *Lee* that prisons were categorically different, in purpose and aim, than society writ large: "[P]rison authorities have the right, acting in good faith and in particularized circumstances, to take into account racial tensions in maintaining security, discipline, and good order in prisons."[16] Though the eradication of racial discrimination was certainly laudable in prison contexts (the Equal Protection Clause, granted, was "universal in [its] application")[17] as part of the project of American social equality, the Ninth Circuit had found that, in an otherwise fully integrated CDC prison, that the CDC's racialized housing policy and its consequences was neither broad nor disparate, making it limited to the violence it sought to eliminate.

This interpretation would subsequently fall into the hands of precedent in *Turner v. Safley* (an earlier 1987 Supreme Court case that dealt with the First Amendment and the constitutionality of marriage in prisons), which drew a line between the authority of reviewing courts and the authority of prisons. Though inmates, like schoolchildren,[18] did not leave their constitutional rights bereft at the prison gates, the Ninth Court reading *Turner* established a deferential (relaxed) standard of judicial review,[19] reasoning "courts are ill-equipped to deal with the increasingly urgent problems of prison administration and reform" [20] and "[s]ubjecting day-to-day judgments of prison officials to an inflexible strict scrutiny analysis would seriously hamper their ability to anticipate security problems and to adopt innovative solutions to the intractable problems of prison administration."[21] In short, in relaxing the daunting standard of strict scrutiny, *Turner* had ostensibly lowered the burden of government, as prison administrators, to justify race-based policies incoherent with the Constitution, writing, "when a prison regulation impinges on inmates' constitutional rights, the regulation is valid if it is reasonably related to legitimate penological interests."[22]

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[16] *Lee v. Washington, 390 U.S. 333 (1968), at 334*.
[17] *Yick Wo v. Hopkins, 118 U.S. 356 (1886), at 369*.
[18] *See Tinker v. Des Moines, 393 U.S. 503 (1969), at 393*: Students do not "shed their constitutional rights to freedom of speech or expression at the schoolhouse gate."
[19] This is akin to the more common usage of "rational basis review", wherein the burden falls on the challenger to show that a government action is unconstitutional. This is the least scrutinous of all forms of judicial review.
[20] *Turner v. Safley, 482 U.S. 78 (1987), at 84*.
[21] *Ibid., at 89*.
[22] *Ibid., at 89*.

IV. APPLYING THE TURNER STANDARD TO *JOHNSON V. CALIFORNIA*

What did the *Turner* precedent "reasonably related to penological interests" (or "particularized", as phrased in *Lee*) mean for *Johnson v. California*? This question was parsed in four parts, according to a test set by *Turner* that (1) a "valid, rational connection [must exist] between the prison regulation and the legitimate governmental interest put forward to justify it",[23] and that reviewing courts had to determine (2) "alternative means of exercising the right that remain open to prison inmates";[24] (3) "the impact accommodation of the asserted constitutional right will have on guards and other inmates, and on the allocation of prison resources generally";[25] and (4) whether "ready alternatives"[26] to the CDC's current policy were available as evidence of the policy's unreasonableness.

A. DEFINING A VALID, RATIONAL CONNECTION BETWEEN PRISON REGULATION AND LEGITIMATE GOVERNMENT INTEREST

That CDC administrators claimed their race-based initial housing policy protected the safety of inmates and prison staff seemed to satisfy, in the Ninth Court's view, the first prong of the *Turner* test. This penological interest was furthermore legitimate based on its neutrality. Though Johnson had been segregated, the CDC did not confer privileges (e.g., giving "White cells" preferential treatment over "Black cells", such as better living conditions) to certain racial groups, and that the segregation, though race-based, was not a means for achieving underlying racial objectives itself—but rather was implemented "on the basis of [its] potential implications for prison security."[27] The policy was also rationalized: Documented racial violence[28] reported by the CDC was taken as good evidence by the Ninth

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[23] *Ibid., at 78*.
[24] *Ibid., at 98*.
[25] *Ibid., at 90*.
[26] *Ibid., at 98*.
[27] *Thornburgh v. Abbott, 490 U.S. 401 (1989), at 415*.
[28] A few select examples included racial (and gang-based) violence between Northern and Southern Hispanics; Black-on-White inmate violence; and a major racial riot in 2000 in which 250-300 Southern Hispanics and White inmates attacked Black inmates, leading to 25 hospitalizations. *See Johnson v. California, 321 F.3d 791 (2003), at 801*.

Circuit that prison administrators had been acting on a substantiated record. Using race as a predominant factor for temporary cell assignments, in lieu of racial tension and the uncertainty of new inmates' place in such a matrix, was thus seen as a common-sense orientation, or at the very least, as a plausible belief that such a practice could further safety interests.

B. CONSIDERATION OF ALTERNATIVE MEANS OF RIGHT EXPRESSION

In challenging the use of race in CDC housing decisions, Johnson had expressed the constitutional right to be free from alleged state-sponsored "racial discrimination",[29] which the Ninth Court viewed in totality. Reading *Turner* in the same way (where the right at issue was freedom of expression *in toto*, not the specific right to communicate with inmates at other institutions), the Ninth Court applied the second prong of the *Turner* test not as a question of whether there were reasonable alternatives to race as a factor in initial cell placements, but whether Johnson, while an inmate, was given alternative freedoms from racial discrimination in general. The court concluded Johnson was, citing the finitude of the initial housing policy, as well as the relative racial integration of CDC prisons as evidence, that beyond the 60-day housing period of what Johnson had alleged as racial discrimination, he was free from it.[30]

C. IMPACT ACCOMMODATIONS OF JOHNSON'S ALLEGED CONSTITUTIONAL RIGHT

Thirdly, the Ninth Court examined the impact accommodating a type of race-neutral stance to its initial housing determination would have on CDC staff, inmates, and resources. For the court looking to testimonies from CDC administrators, the impact was obvious: Failing to factor race in such decision-making would exacerbate racial violence in cells and then ripple into violence in prison common areas. Absent any contrary evidence produced by Johnson, on whom the burden of proving unconstitutionality now fell, the Ninth Court deferred to the informed discretion of CDC

[29] *Brief for Petitioner in Johnson v. California, at 12*.
[30] Even if the alternatives were limited to only the 60-day period, the Ninth Court was unmoved, as the initial housing policy met the *Turner* test for reasonableness.

administrators on the matter that disregarding race would result in danger at every corner of prison.

D. "READY ALTERNATIVES" TO THE INITIAL HOUSING POLICY

Lastly, the Ninth Court asked if there were any "ready" (ergo reasonable) alternatives to the race-based initial housing policy that would "fully accommodate the prisoner's rights at a *de minimis* cost to valid penological interests."[31] Johnson had proposed CDC staff could replace race as a factor by screening new inmates for (A) professed gang affiliation or (B) by teasing out individual racial animus or their history of interracial violence beforehand. The Ninth Court found these solutions to be disingenuous. It doubted inmates would provide potentially self-incriminating information about their gang affiliations or racial animus to CDC officials, or that this information would be readily verifiable, noting the ways in which some racial animosity was kept in private by inmates. Background checks on inmates were also deemed unreasonable, as the court believed inmates' pre-incarceration or pre-transfer profiles were too contrastive to draw any meaningful conclusions about what kinds of racial violence they would be predisposed to once inside a new prison. The costs of these background checks also appeared to violate the third prong of the *Turner* test too. The Ninth Court did not think the lengths the CDC would have to go to collect background information was of a *de minimis* character. Such alternatives in their opinion, therefore, could not prevail.

E. RESULT AND HOLDING OF JOHNSON'S CASE UNDER THE TURNER STANDARD

The Ninth Court ultimately held that the protection of inmates and staff was a legitimate penological interest, and that the CDC policy of using race as a factor in the initial assignment of cells, insofar as it reduced racial violence in prisons in the absence of ready alternatives, passed the *Turner* test as being reasonably related to such concerns. The burden of proving a violation to equal protection before the law was placed on Johnson's shoulders, not on the State of California, and by admonishing Johnson's failure to prove unconstitutionality, the court would defer to the

[31] *Turner v. Safley, 482 U.S. 78 (1987), at 402*.

presumptive constitutionality of the CDC's initial housing practices as it was: race-conscious, race-segregated.

V. THE SUPREME COURT'S REVERSAL TOWARDS STRICT SCRUTINY

On writ of certiorari to the Ninth Circuit, Johnson appealed his case to the Supreme Court ("the Court"), which was heard in 2005. Writing for a 5–3 majority opinion, Justice Sandra Day O'Connor reversed the decision by the Ninth Circuit that the constitutionality of the CDC's initial housing policy was to be reviewed (and maintained) under the deferential standard as articulated in *Turner.* A higher order of judicial scrutiny was desired by the Court: strict scrutiny.

In *Adarand*, the Court had previously established "*all* racial classifications, imposed by whatever federal, state, or local governmental actor, must be analyzed by a reviewing court under strict scrutiny."[32] This precedent was moving for the *Johnson* Court, as it was apprehensive, far more than the Ninth Circuit, about "what classifications are in fact motivated by illegitimate notions of racial inferiority or simple racial politics."[33] The Court, simply, could not and would not throw caution to the wind about what racial classifications were invidiously motivated and what were not—as there was no easy way of causal differentiation.

Under this notion, the Court diverged from the Ninth Court's ruling (and the CDC's contention) that the initial housing policy was neutral in the sense that it "neither benefits nor burdens one group or individual more than any other group or individual."[34] Johnson, while segregated with another Black inmate, was equally segregated by race as the policy applied to all inmates who entered CDC prisons. This notion of *neutral-as-equal* segregation, however, crumbled as the Court affirmed the doctrine of "separate but equal ha[d] no place"[35] for prisons, in *Johnson*, as it did not for public education in *Brown v. Board of Education*.[36] Unlike the

[32] *Adarand Constructors, Inc. v. Peña, 515 U.S. 200 (1995), at 201*.
[33] *Richmond v. J. A. Croson Co., 488 U. S. 469 (1989), at 493*.
[34] *Brief for Respondent in Johnson v. California, at 16*.
[35] *Brown v. Board of Education, 347 U.S. 483 (1954), at 495*.
[36] 50 years ago from *Johnson*, the Court ruled in *Brown* that separate could never be equal, or neutral. This precedent appeared to apply to all public institutions, but we

application of the *Turner* test, the CDC's use of racial classifications did not become legitimate because Johnson had been segregated to the same degree as other inmates.

As the Court saw it, racial segregation in prisons deserved a *heightened*, rather than deferred, standard of review. Though the CDC had argued the reduction of racial violence rationalized its initial housing policy, the Court turned to *Shaw v. Reno*, recognizing that the CDC's interest, in truth, was possibly countervailing: "[Racial classifications] threaten to stigmatize individuals by reason of their membership in a racial group to *incite racial hostility*."[37] Race concordant cell-pairings by the CDC opened the possibility for *further*, as opposed to *curbed* racial tensions—in perpetuating the salience of race as what mattered most for prison sociality, racial segregation could "exacerbate the very patterns of [violence it was] said to counteract."[38] Notably, the *Shaw* precedent had some empirical backing; an earlier longitudinal study by Trulson and Marquart (2002) of the Texas state prison system had found the rate of racially motivated assaults between inmates segregated by race in double-cells (like the CDC arrangement) had in the span of 10 years surpassed that of the racially integrated.[39] While unwritten, that the CDC's initial housing policy was an express racial classification rendered it "immediately suspect."[40]

A. REJECTING THE TURNER STANDARD

The crux of the Court's reversal of *Johnson* was its rejection of the *Turner* standard as justifying deferential judicial review, opposing the idea that "[d]eferential standards are applied to all constitutional claims made by prisoners."[41] The facts of *Turner*, which the Court interpreted conservatively as a First Amendment issue, did not concern government racial classification, nor had the Court ever applied *Turner's* test of

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observe its challenges in *Lee*, where separate-but-equal was argued to be neutral for prisons. However, the *Johnson* Court refused to resurrect this interpretation.

[37] *Shaw v. Reno, 509 U.S. 630 (1993), at 643*.

[38] *Ibid., at 648*.

[39] Trulson, Chad, and James W. Marquart. "The Caged Melting Pot: Toward an Understanding of the Consequences of Desegregation in Prisons." *Law & Society Review* 36, no. 4 (2002): 743–82.

[40] *Shaw v. Reno, 509 U.S. 630 (1993), at 642*.

[41] *Brief for Respondent in Johnson v. California, at 20*.

reasonableness beyond rights "inconsistent with proper incarceration."[42] It was acknowledged, faintly with the Ninth Circuit, that some rights and privileges could be constitutionally limited in penal environments (e.g., the freedom of correspondence and the right to marry in *Turner*; freedom of association in *Overton*; or the privilege of receiving subscription publications in *Thornburgh*), but, the rights at hand in *Johnson* were consistent with lawful incarceration. Johnson's equal protection freedom from racial discrimination was "a right that need [not] necessarily be compromised for the sake of proper prison administration."[43] In fact, the elimination of racial discrimination in prisons was argued by the Court as benefiting the legitimacy of the entire carceral system—striking public confidence, in a paradigm of criminal justice already stratified against young, African American men like Johnson himself[44]—that the rule of law was not dispensed in a way that would further entrench the lines of American racial politics. Applying *Turner* in an *ad hoc* fashion and granting the CDC a special exemption from the demands of *Adarand*, in short, undermined the Court's "unceasing efforts to eradicate racial prejudice from our criminal justice system."[45] As it stood, *Turner* imposed too lenient of a standard—if a policy was only to be "reasonably related to penological interests",[46] CDC and other prison officials could be absolved to institute race-conscious policies even when there existed ("ready") race-neutral means that satisfied the same penological interests, and worse, could permit racial classifications even when they did not advance penological interests in practice. As a result, in reversing the standard from *Turner* to strict scrutiny, the Court believed the CDC, *not* Johnson, had the burden of demonstrating that its initial housing policy, as it applied to new inmates and transferees, was narrowly tailored to serve a compelling governmental interest.

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[42] *Overton v. Bazzetta, 539 U.S. 126 (2003), at 131*.
[43] *Johnson v. California*, *543 U.S. 499 (2005), at 510*.
[44] Western, Bruce, and Christopher Wildeman. "The Black Family and Mass Incarceration." *The ANNALS of the American Academy of Political and Social Science* 621, no. 1 (2009): 221–42.
[45] *McCleskey v. Kemp, 481 U.S. 279 (1987), at 309*.
[46] *Turner v. Safley, 482 U.S. 78 (1987), at 89*.

VI. BEYOND THE SUPREME COURT TO CONSTITUTIONALITY

Importantly, the Court resolved in *Johnson* that, "We do not decide whether the CDC's policy violates the Equal Protection Clause. We hold only that strict scrutiny is the proper standard of review[.]"[47] The holding strikes an anticlimactic tenor—while the case was remanded back to the Ninth Circuit or the District Court for the appropriate review, the case was settled before it was further litigated. To be clear, this was a positive result for Johnson, as the CDC agreed (out of court) to end its use of race as the determinative housing criterion for its reception centers.[48] But for the jurisprudent audience, an agnostic majority opinion of *Johnson* deserts the question: Was the CDC's initial housing policy constitutional according to strict scrutiny? We believe the Court could have made such a determination, and absent a formal ruling, they lend us this question to appraise.

First, we abide with the Court and the Ninth Circuit, in what was explicitly reaffirmed throughout *Johnson*, on their good precedent that the "necessities of prison and discipline security [where government power is at its peak]"[49] are a compelling governmental interest. Moreover, the deployment of racial classification, while "strict in theory", may not necessarily be "fatal in fact."[50] Though all governmental uses of race are subject to strict scrutiny per *Adarand*, not all of its uses are "invalidated by it."[51, 52] The CDC, on this exception, could claim that the racial discrimination alleged by Johnson was justified, so long as it was narrowly tailored to protect inmates from violence, as held by *Lee*. The issue, then, becomes whether those facts are indeed fatal—as we argue they are.[53]

Here the object of scrutiny is how narrowly tailored the CDC's initial housing policy was to serve good penological safety interests. Amid a national cross-section of penal administration, this contention is strange. While the CDC was segregating its initial housing assignments, all other U.S. federal and state prison systems operating at the time of *Johnson* were

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[47] *Johnson v. California*, *543 U.S. 499 (2005), at 515*.
[48] *Settlement and Release Agreement for Johnson v. California, at 2*.
[49] *Lee v. Washington, 390 U.S. 333 (1968), at 334*.
[50] *Adarand Constructors, Inc. v. Peña, 515 U.S. 200 (1995), at 237*.
[51] *Grutter v. Bollinger, 539 U.S. 306 (2003), at 327*.
[52] *Grutter* provides an example of a government policy, in this case race-conscious affirmative action, passing strict scrutiny.
[53] We advance arguments set forth originally by Justice John Paul Stevens' dissent in *Johnson v. California*, *543 U.S. 499 (2005), at 517*.

managed sans racial segregation, or at the very least, had not adopted such an *inflexible* and *absolute* policy of double-cell racial segregation in reception centers.[54] If we accept for a moment the presumption that interracial violence was a threat to the good order of prisons everywhere (to be sure, entertaining the CDC's rationale, prison gang culture has national omnipresence), why was a race-based initial housing policy absent in an organization of federal and state prisons, except for the CDC? While the CDC gave lip-service to other factors beyond race, the fact that CDC administrators could only recall a single exception-to-the-rule, where a new Hispanic inmate was allowed to house with a Black inmate because "he had been raised with Crips",[55] throws doubt in the proclaimed flexibility by the CDC that their "reception center inmates may cell with inmates of races, upon request, if the inmates provide information that they are compatible."[56] There is no evidence that this racial integration was routine—segregation was the norm, as was an embedded assumption that integrated inmates were incapable of getting along with each other. The CDC, in this view, was begging the question that housing inmates of different races in double-cells created an elevated risk of racial violence: Inmate race was a supposed proxy for gang involvement (e.g., "it is widely recognized that prison gangs are formed and organized along racial lines")[57] and gang involvement was a supposed proxy for violence (e.g., "[t]he prison gang culture is, above all, violent").[58] But we question this chain of logic—beyond the casual observation, the CDC in their brief made no effort to justify such presumptions had a narrow, robust empirical shape. Put by Johnson, "The CDC's policy of routinely subjecting arriving inmates to racially segregated cells is the antithesis of *narrowly tailored*. It is an overbroad, blanket approach that has been mechanically applied for more than 25 years, and is applied today in the face of empirical data."[59] Indeed we do not know, specifically, what percentage of new inmates or transferees like Johnson were members of race-based gangs, nor had the CDC proved *interracial* violence was disproportionately greater than *intraracial* violence in its prisons. It is preferred that they had, as the status quo of the

[54] *Brief for United States as Amicus Curiae Supporting Petitioner in Johnson v. California.*
[55] *Petitioner's Reply Brief in Johnson v. California, at 3*.
[56] *Brief for Respondent in Johnson v. California, at 9*.
[57] *Ibid., at 4*.
[58] *Ibid., at 3*.
[59] *Brief for Petitioner in Johnson v. California, at 33*.

times seemed to contravene that violent crime and victimizations were more intraracially perpetrated, in society[60] and in prisons,[61] rather than interracial.

Further, while there is a macrosocial temptation to say that all inmates in prison environments are at-risk for violent behavior, proclivities toward violence are certainly moderated by a constellation of individual risk factors[62] (e.g., prior criminality) that should vary from inmate to inmate. Yet the CDC applied its initial housing policy to all new and transferring inmates, even if a relatively simple heuristic, such as reviewing criminal records, so derided as being tangential by the Ninth Court, could lead to more individualized outcomes. Put differently, if we apply the CDC's policy in force with race as the first resort, would it not be unusual, for example, that two inmates of different races—neither of whom has any history of gang membership, or of violence—to be barred from being housed together for 60 days? In this example, the CDC would be totalizing segregation by race even where it is the least reasonably related to its penological interests in safety.

Opposed to integrated double-cells, then, the CDC was confident in an institutional pattern that housing members of different races or ethnicities together was a fundamental precursor to violence, as one official, an associate warden, testified: [63]

> [You] cannot house a Japanese inmate with a Chinese inmate. You cannot. They will kill each other. They won't even tell you about it. They will just do it. The same with Laotians, Vietnamese, Cambodians, Filipinos. You have to be very careful about housing Asians with other Asians. It's very culturally heavy.

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[60] Wilbanks, William. "Is Violent Crime Intraracial?" *Crime & Delinquency* 31, no. 1 (1985): 117–28.

[61] See Trulson and Marquart (2002) who found 55% of inmate-on-inmate violence in Texas prisons was intraracial while 45% was interracial, a nontrivial difference, given that 10% represented an extra 3,558 or so violent incidents.

[62] Farrington, David P., Hannah Gaffney, and Maria M. Ttofi. "Systematic Reviews of Explanatory Risk Factors for Violence, Offending, and Delinquency." *Aggression and Violent Behavior*, 33 (2017): 24–36.

[63] *Johnson v. California, 321 F.3d 791 (2003), at 805*.

But we should not be so confident in such confessions. *They will just do it?* The evidence disputes this, as research at the time, for example, among the Chinese (and Vietnamese) in California had shown that "most [violent] crime there is intraracial."[64, 65] Yet instead of factuality, the CDC view is laced with prejudice. In assessing the infamy of *Korematsu v. United States* which upheld the forced segregation of Japanese Americans during World War II, Eric Yamamoto notes: [66]

> In its deliberations, the Court failed to scrutinize carefully the factual basis of the military's claim of necessity. The official record was bereft of evidence supporting this claim. Looking beyond the record, the Court in effect took judicial notice of the government's preferred general conclusions concerning both racial stereotypes and the danger of espionage and sabotage which was allegedly posed by West Coast Japanese Americans.

Adopting this notion of *Korematsu* to *Johnson* for a strikingly similar instance of forced racial segregation, we find a similar panic behind the CDC's action—that their policy of segregating racial groups, in this case Asians, was perhaps less ingrained in a factual basis and more so lodged in racial stereotypes and ahistorical fears about the dangers of integrated double-cells. This would be antithetical to the very core of a narrowly tailored policy supposed to fit "the compelling goal so closely that there is little or no possibility that the motive for the classification was illegitimate racial prejudice or stereotype."[67] But here this possibility remains ajar, and such broad sweeps in judgement about the behaviors of racial groups are hardly credible under strict scrutiny, as Chief Justice Warren Burger wrote in *Palmore*, "Classifying persons according to their race is more likely to

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[64] Stone, Christopher. "Race, Crime, and the Administration of Justice." *National Institute of Justice Journal*, 1999, 26–32, at 27.
[65] Song, John Huey-Long. "Attitudes of Chinese Immigrants And Vietnamese Refugees Toward Law Enforcement In The United States." *Justice Quarterly* 9, no. 4 (1992): 703–19.
[66] Yamamoto, Eric. "Korematsu Revisited - Correcting the Injustice of Extraordinary Government Excess and Lax Judicial Review: Time for a Better Accommodation of National Security Concerns and Civil Liberties." *Santa Clara Law Review* 26, no. 1 (1986): 1–62, at 1–2.
[67] *City of Richmond v. J. A. Croson Co., 488 U.S. 469 (1989), at 493*.

reflect racial prejudice than legitimate public concerns; the race not the person, dictates the category."[68]

Still, the CDC flirted with its real and ravaged world where "[g]ang and race-related violence is a harsh reality in California prisons."[69] The following excerpt is illustrative of their position:[70]

> Violence in California prisons is well documented. The Ninth Circuit took notice of a series of race-based riots at Pelican Bay State Prison that resulted in one death and twenty-five injured inmates being transported to outside hospitals, as well as many other instances of violence that were reported in the media. The reported incidents include a race riot between Hispanics and African-Americans at Adelanto Prison during which six prisoners were injured, one critically, and after which 100 inmates had to be transferred; a lockdown following a riot at Lancaster Prison when large groups of Latino and white inmates rushed each other and ten inmates were injured; and a disturbance between 100 African-American and Latino inmates in an exercise yard at Folsom State Prison which led to the death of one prisoner and injuries to thirteen others.

We do not necessarily dispute these events occurred in CDC prisons, nor that interracial animus could have played a causal role in the development of the cited violence. But if we are to draw connections between racial categories and policy, there has to be evidence, specifically, of the same patterns of interracial violence, which the CDC so effusively listed above, occurring in the double-cells of reception centers. We find no such indications of these patterns,[71] and more aptly to the CDC's contention, We find no indication that the race rioting and gang violence supposedly maligning CDC prison yards were married to the concern of cellmates housed in CDC reception centers. While the CDC claimed, "One of the primary sources of new prison gang members is street gangsters who are sent to prison, and some of the prison gangs are actively recruiting

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[68] *Palmore v. Sidoti, 466 U.S. 429 (1984), at 432*.
[69] *Brief for Respondent in Johnson v. California, at 30*.
[70] *Ibid., at 4*.
[71] *Brief for Petitioner in Johnson v. California, at 38*.

[them] to bolster their ranks",[72] this connection appears unsubstantiated. The CDC provided no evidence that new inmates were being actively recruited by gangs to commit acts of violence, nor, that new inmates were directly causing race riots in prison yards. Moreover, even if we could establish a link between what was happening between cellmates in reception centers, and what was happening in the general prison population, why was the initial housing policy of the CDC implemented across all of its prison systems? If it was true that Pelican Bay State; Adelanto Prison; Lancaster Prison; and Folsom State Prison (where Johnson was transferred) had "well documented" histories of racial violence, why did the CDC not tailor its housing policy to these particular institutions? What if there was a prison operating within the CDC system that was peaceful and nonviolent? Why and how segregated housing could then be justified, if it was apparently Pelican Bay State down the road propagating racial violence, should flout our constructions of a truly narrow policy.

We must also question the inversion of resort: why the CDC used race as a first-resort determinative factor in their housing assignments, when segregated double-cells appeared to tread on the dark side of this country's history. Indeed, we need not search far back into the annals of American bloodshed to know that segregation—found particularly in the biography of Johnson, an African American man incarcerated by a penal system dubbed the "New Jim Crow"[73]—has an indelible character of wrong. This charge is in effect moralizing segregation as a form of wrongful classification, which Deborah Hellman argues is a classificatory scheme that denies equal moral worth—that demeans.[74] For Hellman, a classification becomes demeaning depending on the social meanings and power dynamics at play, and though this determination is a "complex interpretive judgement",[75] Hellman cites the segregation of African Americans as a "quintessential example of demeaning"[76]—that the "social meaning of segregation is the putting of [African Americans] in a position of walled-off inferiority", as defended by Lawrence Black.[77] Here, we reiterate the sociality of

[72] *Brief for Respondent in Johnson v. California, at 3*.
[73] Alexander, Michelle. *The New Jim Crow: Mass Incarceration in the Age of Colorblindness*. The New Press, 2012.
[74] Hellman, Deborah. *When Is Discrimination Wrong?* Harvard University Press, 2008.
[75] Ibid., at 40.
[76] Ibid., at 40.
[77] Black, Charles L. "The Lawfulness of the Segregation Decisions." *The Yale Law Journal* 69, no. 3 (1960): 421–30, at 427.

demeaning classifications because it is different from Johnson's meaning(s). Though Johnson may or may not have felt demeaned (or "truly" discriminated against when his housing was temporary and when he did not suffer injurious harm), the social context in which he was imprisoned and segregated, powerlessly, as an African American man, recasts historical injustice. Because we should be careful here: The incarcerated lose some rights and freedoms. But they do not lose their humanity.

Importantly, our discussion of Hellman's moral paradigm is not a selective attempt to bedevil the CDC. Rather, it is to locate, and to reconcile, her ideology with that of normative understandings across American jurisprudence—not only of government racial segregation as indefensible but of the (im)permissibility of racial classification as a whole. As found in *Grutter*, "The Constitution abhors classifications based on race […] every time the government places citizens on racial registers […] it demeans us all."[78]

With these strong sentiments cast, we are thus left to wonder why the CDC had never considered, as a first resort, any race-neutral or moreover any individualized means to achieve its overarching security concerns. The Ninth Court was dismissive of Johnson's arguments that the CDC could reasonably conceive of a ready alternative to its blanket housing policy, but we challenge that premise. It is not apparently evident the CDC had implemented a diligent race-neutral method of maintaining prison safety. Here, the counterargument that such an accommodation would mire the limited resources and staff of the CDC becomes attractive. But even if that was true, the CDC could have at the very least experimented with,[79] or just simply fathomed the concept of race-neutrality in its initial housing. For CDC prisons that were otherwise integrated, these were "serious, good faith"[80] stones that nevertheless went unturned. Furthermore, as an alternative to automatic and immediate segregation, the CDC failed to explain why it could not rely on individualized evaluations, as mandated by *Grutter* when race was a factor, of Johnson and other inmates' risk of violence in assigning them to cells—when other federal and state prison systems had done so without any difficulty. Indeed, the CDC's racial segregation policy was "inconsistent with the expert determinations of the

[78] *Grutter v. Bollinger, 539 U.S. 306 (2003), at 353*.
[79] This is not to suggest that the CDC toy with human life, but rather promote inmate safety in less intrusive ways.
[80] *Ibid., at 339*.

Federal Bureau Prisons (BOP) and virtually all other States, which address concerns of prison security through individualized consideration without the use of racial segregation."[81]

Furthermore, transferees constituted *85 percent*[82] of those subject to the CDC's initial housing policy, and so it is not clear why the CDC could not have simply relied on pre-existing prison records to make reasonable determinations about known gang affiliations or histories of actualized or threatened racial violence. As the CDC conceded, "If the officials had all of the necessary information to assess the inmates' violence potential when the inmates arrived, perhaps a different practice could be used."[83] For habitual transfers like Johnson, who would spend fifteen years under observation during his tenure in the California state prison system,[84] the necessary information was evidently available, such that the CDC could have determined placements without subjecting inmates to periodic segregation. And for new inmates, their initial assignments could have been based on their presentence reports—documents delving into their "legal and social background"[85]—which would have contained information about gang affiliation, criminal records, offensive conduct, and personal history. This was also a source of easily obtainable information, as the California penal code (at the time) should have stated:[86]

> Notwithstanding any other law, whenever a person is committed to an institution under the jurisdiction of the Department of Corrections and Rehabilitation [CDC], whether probation has been applied for or not, or granted or revoked, it shall be the duty of the probation officer of the county from which the person is committed to send to the Department of Corrections and Rehabilitation a report of the circumstances surrounding the offense and the prior record and history of

[81] *Brief for United States as Amicus Curiae as Supporting Petitioner in Johnson v. California*.
[82] *Petitioner's Reply Brief in Johnson v. California, at 3*.
[83] *Brief for Respondents in Johnson v. California, at 42*.
[84] *Brief for Petitioner in Johnson v. California*, *at 3*.
[85] Converse, Caren Wakerman. "Unpoetic Justice: Ideology and the Individual in the Genre of the Presentence Investigation." *Journal of Business and Technical Communication* 26, no. 4 (October 1, 2012): 442–78, at 443.
[86] California Code, Penal Code – PEN § 1203a.

> the defendant, as may be required by the Secretary of the Department of Corrections and Rehabilitation.

Dissidents may again point to the administrative exertion required to access and use the valuable information contained in all these documents, yet we should not be equivocating administrative *expedience* or *convenience* with what is demanded by our Constitution—of eliminating all forms of racial segregation in this country's institutions. The "obvious, easy",[87] and ready alternatives searched by *Turner* and so laboriously by the Ninth Circuit that would negate the initial housing policy were there. It was perhaps the CDC that was unwilling to adopt them, and in the absence of inmate-specific information, we have to consider if the CDC was really antagonizing itself. As much as a racially integrated penal environment can decrease interracial violence and is shaded into an ideal of rehabilitation, race-segregated reception cells initialize a polemical view—that the social structure of prison is governed by racial segregation and its attendant effects of mistrust, hostility, and fear. And though the CDC repudiated racialized gang violence, its blanket policy of racial segregation may have facilitated the formation of race-based gangs, or at the least, pervaded the pernicious belief that inmates—people—of different races could not possibly cohabitate in peace.

VII. POST-*JOHNSON* LESSONS AND CONCLUSION

The Supreme Court decided the CDC's initial housing policy could not escape strict scrutiny, as any government use of racial classification. In this article, spirited by our Fourteenth Amendment, we administered a hypothetical test of that strict scrutiny. The CDC and its racialized treatment of inmates did not fully pass. But, the admission that the CDC split the two-step test of strict scrutiny should ideally pave a road wide enough for both administrative agency and equal protection in the American justice system. There is some truth to *Lee* and *Turner*—that our prisons are institutionally distinct, and that there may be a sense of holier-than-thou authority when courts sit back distally and decree how prisons ought to be run. To be clear: The maintenance of safety in our prisons is a compelling government interest that can merit the application of racial classifications. Where it is a

[87] *Turner v. Safley, 482 U.S. 78 (1987), at 79.*

necessary response to serious threats of racialized violence, prison administrators may very well defend particularized segregation in a court of law. As too, using *Johnson* as precedent, may interlocutors representing institutions where racial violence might be a foreseeable threat, perhaps as in the courtyards of schools or the ranks of military. But let us be clear again, here: *Automatic*, *inflexible*, and *unnecessary* racial segregation has no place anywhere in our society. And though future courts may invite arguments about what these words mean in context, we hope *Johnson v. California* can serve as good precedent, of how high those standards of interpretation will be.